

CAUSE NO. _____
IN THE DISTRICT COURT OF {county} COUNTY, TEXAS
EX PARTE {petitionerName}
COUNTY OF EXAMPLE

null,
null,

v.

JAMIE Q. SAMPLE,
Petitioner.

DOCKET NO.: [TO BE CONFIRMED]

PETITION FOR EXPUNCTION OF CRIMINAL RECORDS — PRE-2021 UNLAWFUL CARRYING OF A
HANDGUN (TEX. CODE CRIM. PROC. ART. 55A.005)

STATUTORY AUTHORITY

Tex. Code Crim. Proc. art. 55A.005 — A person tried and convicted of an offence committed before 2021-09-01 under Penal Code 46.02(a), as that section existed before that date, is entitled to expunction.

Tex. Code Crim. Proc. art. 55A.251 — The ordinary ex parte petition route. Filed in a district court for the county in which the petitioner was arrested or in which the offence was alleged to have occurred.

Tex. Code Crim. Proc. art. 55A.252 — Where the arrest was for a fine-only offence, a justice court or municipal court of record in either county is also available.

Tex. Code Crim. Proc. art. 55A.253 — Prescribes the required contents of the petition and requires verification. (b) forbids duplicate agencies; (a)(8)(C) treats private compilers separately; (c) requires the district clerk's published agency and e-mail list.

Tex. Penal Code 46.02(a), as it existed before 2021-09-01 — Unlawful carrying of a handgun. The route reaches convictions under subsection (a) as it read before the 2021 permitless-carry change, and no other subsection.

I. JURISDICTION AND VENUE

1. This Court has jurisdiction over this matter as the Court of Common Pleas of EXAMPLE County, Pennsylvania, where the proceedings occurred.

2. Venue is proper in this Court because the criminal proceedings that are the subject of this petition occurred in EXAMPLE County, Pennsylvania.

II. PARTIES

3. Petitioner is JAMIE Q. SAMPLE, whose address is 000 EXAMPLE STREET, EXAMPLE CITY, TX 00000.

4. null is null.

5. Petitioner has also been known as: J. Q. SAMPLE.

III. FACTS AND CASE HISTORY

6. On or about 01/01/2015, Petitioner was charged with unlawful carrying of a handgun by EXAMPLE COUNTY

SHERIFF'S OFFICE.

7. The matter was assigned Docket Number [TO BE CONFIRMED].

8. The matter was resolved with the following disposition: Convicted. [DISPOSITION DATE TO BE CONFIRMED]

9. The offense grade was: Class A misdemeanour.

10. Charge statutory reference: Section Penal Code 46.02(a) as it existed before 2021-09-01.

IV. ELIGIBILITY ALLEGATIONS

11. Petitioner may be eligible for expunction on the following basis: null.

IMPORTANT: Petitioner may be eligible; this document does not guarantee eligibility or a court outcome.

V. REQUESTED RELIEF

WHEREFORE, Petitioner respectfully requests that this Court:

(a) Grant this Petition and enter an Order directing the expunction of all records and files relating to the arrest identified in this petition in the above-captioned matter;

(b) Direct all criminal justice agencies having custody of such records to expunge all records relating to this matter; and

(c) Grant such other and further relief as this Court deems just and appropriate.

VI. VERIFICATION

I, JAMIE Q. SAMPLE, verify that the statements made in this petition are true and correct to the best of my knowledge, information, and belief. I understand that false statements herein are made subject to penalty of perjury under Tex. Code Crim. Proc. art. 55A.253.

JAMIE Q. SAMPLE

000 EXAMPLE STREET, EXAMPLE CITY, TX 00000

Date: _____

[NOTE: Date of birth and Social Security Number should be added by petitioner if required by the applicable form or local court rules.]

PROPOSED ORDER

CAUSE NO. _____

IN THE DISTRICT COURT OF {county} COUNTY, TEXAS

EX PARTE {petitionerName}

COUNTY OF EXAMPLE

null v. JAMIE Q. SAMPLE

DOCKET NO.: [DOCKET NUMBER TO BE CONFIRMED]

[PROPOSED] ORDER

AND NOW, this _____ day of _____, 20____, upon consideration of the Petition filed herein, and any response thereto, it is hereby ORDERED and DECREED that:

The Pennsylvania State Police, EXAMPLE County Court of Common Pleas, EXAMPLE COUNTY SHERIFF'S OFFICE, and all other criminal justice agencies with records pertaining to this matter are hereby directed to destroy or return all records relating to the above-captioned matter.

BY THE COURT:

J.

ATTACHMENTS

Attachments submitted with this petition:

- Certified copy of the judgment of conviction (participant obtains from the clerk of the convicting court; LegalEase does not inspect it)
- Private-entity attachment under art. 55A.253(a)(8)(C) (participant's own list)

Prepared by petitioner using LegalEase RCAP. This is not an official court form.